

SENATE No. 2947

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, February 5, 2026.

The committee on Senate Ways and Means to whom was referred the Senate Bill to end housing discrimination in the Commonwealth (Senate, No. 2671), - reports, recommending that the same ought to pass with an amendment substituting a new draft entitled "An Act regarding fair housing practices in the Commonwealth" (Senate, No. 2947).

For the committee,
Michael J. Rodrigues

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An Act regarding fair housing practices in the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 55 of chapter 13, as appearing in the 2024 Official Edition, is
2 hereby amended by adding the following sentence:- Not less than annually, the board shall
3 publish: (i) a summary of complaints filed against license holders in the previous calendar year;
4 (ii) the number and type of disciplinary actions taken by the board pursuant to section 87AAA of
5 chapter 112, including, but not limited to, suspension, revocation or nonrenewal of a license;
6 and (iii) the names of any license holder whose license has been revoked by the board pursuant
7 to said section 87AAA of said chapter 112.

8 SECTION 2. Section 87AAA of chapter 112, as so appearing, is hereby amended by
9 inserting after the word “discrimination”, in line 38, the following words:- , or any other agency
10 that administers fair housing laws and is certified by the federal Assistant Secretary for Fair
11 Housing and Equal Opportunity pursuant to the federal Fair Housing Act, 42 U.S.C. 3601
12 through 42 U.S.C. 3619, inclusive.

SECTION 3. Said section 87AAA of said chapter 112, as so appearing, is hereby further amended by inserting after the word “commission”, in lines 38 to 39, inclusive, the following words:- or agency.

SECTION 4. Said section 87AAA of said chapter 112, as so appearing, is hereby further amended by inserting after the word “commission”, in line 44, the following words:- or agency.

SECTION 5. Section 87SS of said chapter 112, as so appearing, is hereby amended by striking out the second sentence and inserting in place thereof the following sentence:- Every individual applicant for a license as a salesman who is required to take an examination therefor shall, as a prerequisite to taking such examination, submit proof satisfactory to the board that such individual has completed courses in real estate subjects approved by the board; provided, however, that such courses shall total 40 classroom hours of instruction and shall include not less than 4 hours on fair housing law; and provided further, that applicants having successfully completed a course in real property while enrolled in an accredited law school in the commonwealth may also take such examination.

SECTION 6. Section 87XX1/2 of said chapter 112, as so appearing, is hereby amended by striking out the first paragraph and inserting in place thereof the following paragraph:-

A person holding a license as a real estate broker or salesman shall, within their renewal period, satisfactorily complete courses or programs of instruction approved by the board; provided, however, that attendance at such courses or programs of instruction shall be not less than 6 hours but not more than 12 hours as determined by the board. The curriculum contained in such courses or programs shall contain: (i) less than 2 hours on fair housing law; and (ii) not less than 4 hours selected from any of the following subjects: equal employment opportunity,

accessibility for individuals with disabilities, agency law, environmental issues in real estate, zoning and building codes, real estate appraisal and financing, property tax assessments and valuation and real estate board regulations.

SECTION 7. Section 87AAA of chapter 112 of the General Laws, as so appearing, is hereby amended by striking out, in line 49, the word “ninety” and inserting in place thereof the following figure:- 180.

SECTION 8. Said section 87AAA of said chapter 112, as so appearing, is hereby further amended by inserting after the third sentence the following sentence:- The board, after notice by the office of the attorney general that a court in a matter brought by the office of the attorney general has made a finding, which has become final, that a licensed broker or salesman committed an unlawful practice in violation of chapter 151B arising out of or in the course of the person’s occupation as a licensed broker or salesman, shall suspend the license of said broker or salesman for a period of 60 days; provided, however, that if the board determines that the violation by such licensed broker or salesman occurred within 2 years of the date of a prior finding by a court of a violation of said chapter 151B, which has become final, the board shall suspend the license of such broker or salesman for a period of 180 days. An agency empowered to make referrals to the board under this section, including the office of the attorney general, shall make all such referrals that qualify under this section.